

TOWN OF LUNENBURG FISCAL YEAR 2020



FINANCE COMMITTEE REPORT & SPECIAL TOWN MEETING WARRANT

**Special Town Meeting
November 12, 2019 - 7:00 PM
Lunenburg Middle/High School Auditorium**

PLEASE BRING THIS WARRANT WITH YOU TO TOWN MEETING

INDEX OF NOVEMBER 12, 2019 SPECIAL TOWN MEETING ARTICLES

Article	Description	Cost	Source
1	FY 2020 Budget Adjustment Article	TBD	Raise & Appropriate and/or Transfer from Available Funds
2	Special Purpose Stabilization Fund	TBD	Raise & Appropriate
3	FY20 Sewer Enterprise Budget Amendment		Anticipated Receipts, Retained Earnings and Transfer
4	Sewer Reserve Capacity Stabilization Fund	\$7,513.66	Sewer Retained Earnings
5	FY 2020 Police Union Collective Bargaining Agreement	TBD	Transfer from Available Funds
6	Acquisition of 961 and 994 Northfield Road	\$782,000	Borrow
7	842 Chase Road Rear		
8	Add 189 Cross Road to Sewer Service Area		
9	Amend Code of Lunenburg, Chapter 70 Salary Administration Plan		
10	Amend Code of Lunenburg, Chapter 81 "Town Meetings"		
11	Amend Code of Lunenburg, Chapter 140 Article I "Excavations and Earth Removal"		
12	Acceptance of Butterfly Lane as Town Way		
13	Non-binding Resolution on Demolition of the old Primary School		
14	Home Rule Petition for additional Sec. 15 Liquor License for Lanni Orchards		
15	Home Rule Petition for additional Sec. 15 Liquor License		

**TOWN OF LUNENBURG
SPECIAL TOWN MEETING WARRANT
NOVEMBER 12, 2019**

Worcester, ss:

To: Constable of the Town of Lunenburg, in the county of Worcester, Greetings:

In the name of the Commonwealth of Massachusetts, you are hereby directed to notify and warn the inhabitants of the Town of Lunenburg, qualified to vote in elections and town affairs, to meet in the Lunenburg Middle/High School Auditorium in said Lunenburg on Tuesday, the 12th day of November, 2019, at 7:00 o'clock in the evening (7:00 P.M.), for the purpose of taking action on the Special Town Meeting Warrant, and then and there to act on the following articles, viz:

SPECIAL TOWN MEETING ARTICLES

ARTICLE 1. To see if the Town will vote to raise and appropriate, borrow, or transfer from available funds, all sums of money necessary to amend the amounts voted for the Town's FY 2020 Budget, under Article 7 of the May 4, 2019 Town Meeting; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (4-0)

ARTICLE 2. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to the Special Purpose Stabilization Fund; or take any other action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (4-0)

ARTICLE 3. To see if the Town will vote to raise and appropriate or transfer from available funds, all sums of money necessary to amend the amounts voted under Article 12 of the May 4, 2019 Town Meeting for the Sewer Enterprise Fund; or take any other action relative thereto. (Submitted by the Sewer Commission)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Deferred (4-0)

ARTICLE 4. To see if the Town will vote to transfer from available funds the sum of \$7,513.66 into the Reserve Capacity Stabilization Fund; or take any other action relative thereto. (Submitted by the Sewer Commission)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (5-0)

ARTICLE 5. To see if the Town will vote to raise and appropriate or transfer from available funds, a sum of money to fund the first year of the FY 20, FY 21 and FY 22 Police Officers Collective Bargaining Agreement dated July 1, 2019 – June 30, 2022 with IBPO Local 353, AFL-CIO; or take any action relative thereto. (Submitted by the Town Manager)

FINANCE COMMITTEE RECOMMENDATION: Deferred (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Deferred (4-0)

ARTICLE 6. To see if the Town will vote to authorize the Board of Selectmen to acquire, by gift, purchase, eminent domain or otherwise, that certain property, determined to be unique, owned by John E. Saliba and David G. Saliba, being the remaining land of said owners as described in a deed recorded at the Worcester North District Registry of Deeds at Book 4630, Page 224, the northern portion thereof (approximately 259.31 acres, including approximately 21,740 square feet in Fitchburg, at 994 Northfield Road Rear, Lunenburg Assessor Parcel ID 037-0015-00 and Fitchburg Assessor Parcel ID S31-12-A and S31-12-D) to be acquired by the Town under the provisions of Massachusetts General Laws, Chapter 40, Section 8C, as it may hereafter be amended, and other Massachusetts statutes relating to conservation, to be under the care, custody and control of the Conservation Commission for conservation and passive recreation purposes, and the southern portion thereof (approximately 58.75 acres at 961 Northfield Road S, Lunenburg Assessor Parcel ID 037-0009-00) to be acquired by the Town under the provisions of Massachusetts General Laws, Chapter 45, Section 3, as it may hereafter be amended, and other Massachusetts statutes relating to recreation, to be under the care, custody and control of the Parks Commission for recreation and parks purposes; and to raise and appropriate, borrow, or transfer from available funds a sum of \$782,000 for said purpose, including the payment of all costs incidental or relative thereto; provided, however, that the acquisition of said property shall be contingent upon the Town being awarded the maximum eligible grant amounts under the Commonwealth of Massachusetts' Local Acquisitions for Natural Diversity (LAND) and Parkland Acquisitions and Renovations for Communities (PARC) Grant Programs; that the amount borrowed will be reduced by any grant funding received towards the property acquisition; and that the Board of Selectmen be authorized to enter into all agreements and execute any and all instruments as may be necessary on behalf of said Town to affect the aforesaid acquisition; or take any other action relative thereto. (Submitted by the Land Acquisition Committee)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (4-0-1 Abstention)

ARTICLE 7. To see if the Town will vote to acquire by gift that certain property, determined to be unique, known as and numbered 842 Chase Road Rear, more specifically identified in the Assessor's records as Parcel 013-0001, and being further described in a deed recorded with the Worcester North District Registry of Deeds at Book 3611, Page 145, said property consisting of 23 acres, more or less; such property to be held in the care, custody and control of the Conservation Commission for conservation purposes, no appropriation being required therefor; or take any other action relative thereto. (Submitted by the Conservation Commission)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (4-1)

ARTICLE 8. To see if the Town will vote to amend the Sewer Service Area Map by adding 189 Cross Road to the Lunenburg Sewer Service Area and Sewer Service Zone (parcel ID 112-58); or take any other action relative thereto. (Submitted by the Sewer Commission)

FINANCE COMMITTEE RECOMMENDATION: Deferred (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Deferred (4-0)

ARTICLE 9. To see if the Town will vote to amend the Code of Lunenburg, Chapter 70 entitled “Salary Administration Plan” as follows: the position of Life Guard to be changed from a Grade 1 to a Grade 3; the position of Public Access Production Assistant to be added and assigned Grade 9; the position of Recreation Director to be added and assigned Grade 9; the position of Building Commissioner be changed from a Grade 14 to a Grade 16; the position of COA Director be changed from a Grade 11 to a Grade 14; and the position of Assistant Town Manager/HR Director to be added and assigned Grade 16; or take any other action relative thereto. (Submitted by the Personnel Committee)

FINANCE COMMITTEE RECOMMENDATION: Recommend Approval (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (5-0)

ARTICLE 10. To see if the Town will vote to amend the Code of Lunenburg, Chapter 81 entitled “Town Meetings” as follows: by deleting from §81.3, entitled “Closing of warrant,” the sentence: “All requests for the insertion of subjects in the warrant for the Annual Town Meeting shall be submitted on or before 4:00 p.m. on the 42nd day before the date of the Annual Town Meeting”; and substituting the following sentence therefor: “All requests for the insertion of subjects in the warrant for the Annual Town Meeting shall be submitted on or before 4:00 p.m. on the 47th day before the date of commencement of the Annual Town Meeting”; or take any other action relative thereto (Submitted by the Board of Selectmen)

FINANCE COMMITTEE RECOMMENDATION: No Recommendation-No direct financial impact (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (5-0)

ARTICLE 11. To see if the Town will vote to amend the Code of Lunenburg, by deleting in its entirety Chapter 140 Article I, entitled “Excavations and Earth Removal,” and substituting the language below therefor; or take any other action relative thereto.

§ 140-1 Purpose.

The purpose of this article and associated regulations is to regulate earth removal operations and land filling operations for the protection of human health, public safety, welfare, and the Town's natural resources in the Town of Lunenburg. Further, the provisions of this article are intended to protect abutting property owners from dust, washouts, noise, ponds, and other hazardous land conditions that could potentially be created by poorly managed earth removal and/or filling operations.

§ 140-2 Definitions.

As used in this bylaw, the following terms shall have the meanings indicated:

ABUTTERS

The owners of property within 300 feet of the perimeter of the subject property.

APPLICANT

The owner of land from which earth will be removed or fill to be placed, or the person of lawful standing in the stead of such owner. Any person, company, or agent standing instead of the actual property owner must have the owner's written permission to do so.

BOARD

The Planning Board of the Town of Lunenburg, which shall act as the permit granting authority (PGA).

EARTH

This term shall include soil, loam, sand, gravel, clay, peat, rock, or other earth material in solid form.

EARTH REMOVAL OPERATION

Any commercial mining, stripping, quarrying, filling, digging or blasting of earth originating from the Town of Lunenburg and its transportation into or out of the Town of Lunenburg.

EROSION

The process by which the ground surface is worn by forces such as wind, running water, ice, abrasion, gravity, transportation or by artificial means.

FILLING OF LAND

The import and use of earth materials on any parcel of land within the Town of Lunenburg.

GRAVEL

Loose fragments of rock or coarse aggregate resulting from natural disintegration and abrasion of rock or processing of weakly bound conglomerate.

LOAM OR TOPSOIL

A soil consisting of a friable mixture of varying proportions of clay, sand, silt, and organic matter.

PGA

The permit granting authority, which will be the Planning Board for the purposes of this article.

PROCESSING

The sorting or separation of earth materials into distinct categories based on particle size or type usually through the use of a screening process, not including stone crushing.

PROPOSED FILL MATERIAL

Any geologic, man-made, recycled or processed material including in its entirety or as a proportion containing clay, rock, sand, gravel, peat and sediment. Material meeting the federal and/or state definition of solid or hazardous waste or as toxic, infectious, radioactive, corrosive, or reactive material is specifically excluded.

SILT

Loose sedimentary material with rock particles usually less than 1/16 mm or less in diameter based on the Wentworth scale of measurement.

SITE

A distinct portion of one or more contiguous lots, under the same or different ownerships, on which an earth removal and/or fill operation is conducted, or is proposed to be conducted, under the permit.

SLOPE

An area that is more or less steep, as measured by the vertical rise over the horizontal distance, expressed as a percentage or ratio. For example, a rise of one foot over three horizontal feet is a slope of 33% and is expressed as a ratio of 3:1 slope.

STONE CRUSHING

The mechanical operation which creates smaller-sized stones or stone products from larger-sized stones, boulders or particles typically using a crushing plant or similar machinery.

§ 140-3 Applicability.

A. All earth removal and earth filling operations in the Town shall provide the following information, in

writing, to the Building Inspector within six months of the effective date of this article:

- (1) The map and parcel number of the subject property;
- (2) An estimate of the amount of material left to be removed (if earth removal);
- (3) An estimate of the amount of fill material remaining to be placed (if fill);
- (4) An estimate of the anticipated annual volume of activity;
- (5) A description of completed and planned reclamation of the property;
- (6) The date the operation began; and
- (7) The anticipated date of completion or cessation of the operations.

B. Except as provided in § 140-4 or 140-5, a permit shall be required for any of the following activities:

- (1) Earth removal that involves 500 cubic yards or more of material per calendar year (January through December).
- (2) The filling of land that involves 500 cubic yards or more of material per calendar year (January through December), provided that it involves either:
 - (a) The disturbance of two or more acres of land; or
 - (b) The filling of land in excess of 18 inches in depth above the existing grade.

C. An earth removal or filling operation that does not exceed any of the above thresholds shall not require a permit but is subject to the following requirements (unless otherwise agreed to, in writing, by the abutting property owner):

- (1) The operation shall not encroach closer than 10 feet to a property line; and
- (2) No greater than a 1:1 slope shall exist between the operation and the ten-foot buffer.

§ 140-4 Exemptions.

The following earth removal or fill operations are exempted from the requirement to obtain a permit under this article:

A. Earth removal or the placement of fill associated with the installation of septic systems, which shall be governed by the Commonwealth of Massachusetts Environmental Code (Title 5, 310 CMR 15.000).

B. Earth removal or the placement of fill associated with the installation of foundations for new buildings and/or building additions, which shall be governed by MGL c. 143 and the Commonwealth of Massachusetts Building Code (780 CMR).

C. Earth removal or the placement of fill proposed for land falling within the Town's Floodplain Protection District, which shall be governed by §§ 250-4.8 of the Lunenburg Zoning Bylaw and require a special permit from the Planning Board.

D. Earth removal or the placement of fill proposed for land falling within the Town's Wetland Protection Bylaw and associated buffer zones, which shall be governed by the Wetlands Chapter within the Town's General Bylaws (Chapter 239), which is administered by the Conservation Commission, and the Massachusetts Wetlands Protection Act.

E. Earth removal or the placement of fill that involves less than 500 cubic yards.

F. Earth removal or the placement of fill, where the operation occurs entirely within an individual parcel and where a Town-accepted public way is not used for the transportation of the material.

G. Earth removal or the placement of fill within the right-of-way for a new subdivision road that has been approved by the Planning Board or Zoning Board where there is already a bond in place with the Town to ensure performance.

The aforementioned items that are exempted provided that they don't exceed any of the following thresholds:

i) the earth removal and/or fill operation is limited to no more than three contiguous lots and does not exceed a total area of six acres, and

ii) the operation is not conducted, maintained, and/or left in a condition so as to alter the natural drainage flow beyond the property; or to cause dust, silt, soil, or other materials to be deposited on adjacent properties; or to otherwise cause nuisances, hazards, or other objectionable conditions detrimental to health, safety, or property values in adjacent areas.

iii) The excavation is not active for a period of time greater than is reasonable for the activity being conducted.

iv) Any earth removal or fill is limited to the necessary scope of the project.

The PGA shall, upon petition by an abutter or by any Town Official or Town Board, review an operation that would be exempt from the permit requirement pursuant to this § 140-4 and may determine that, because of the nature and scope of the earth removal or fill operation, a permit is nonetheless required.

§ 140-5 Continuation of Existing soil removal operations.

A. An existing operation that had been issued a permit by the Board of Selectmen under the Earth Removal Bylaw that was in effect prior to the effective date of this Bylaw may continue to operate according to the terms of such permit, which shall hereafter be enforceable by the PGA pursuant to this article.

B. An existing earth removal and/or fill operation that was not required to obtain a permit under the prior Earth Removal Bylaw, but which exceeds the thresholds specified in § 140-3B of this article, may continue to operate without being required to apply for or obtain a permit for a period of three years from the effective date of this article, provided that the owner or operator of said operation submits to the Building Inspector the information required in § 140-3A within six months of the effective date of this article.

C. The right of an existing operation to operate pursuant to § 140-5A under a permit previously issued by the Board of Selectmen, or to operate without a permit pursuant to § 140-5B, shall expire if the operation is discontinued. An operation shall be deemed to have been discontinued if no earth removal or fill activity occurs at the site for a period of 12 consecutive months.

§ 140-6 Permit criteria for earth removal and fill operations.

A. Permits for earth removal and/or fill operations shall be granted by the PGA only upon its written determination that the proposed use shall not cause substantial detriment to the neighborhood, or the Town,

taking into account the characteristics of the site and the proposal in relation to the site and surrounding environment. In addition to any specific factors that may be set forth elsewhere in this article and its associated regulations adopted pursuant to § 140-8, such determination shall include consideration of each of the following:

- (1) Social, economic, or community needs which are served by the proposal;
- (2) Traffic flow and safety, including loading and unloading;
- (3) Neighborhood character;
- (4) Impacts on the natural environment; and
- (5) Potential fiscal impact, including impact on Town services, tax base and property values.

B. Determination for each of the five criteria shall be set forth in the permit decision as findings of fact.

§ 140-7 General limitations.

A. No permit shall be issued for the removal of earth or the placement of fill in any location if such an operation:

- (1) Will endanger the public safety, public health or constitute a nuisance.
- (2) Will produce noise, dust, or other noxious effects observable at the lot lines of the property in amounts objectionable or detrimental to the normal use of adjacent properties.
- (3) Will result in the transportation of materials in such manner as to cause traffic congestion, dust, spillage, noise, or other nuisances or hazards, particularly on residential streets.
- (4) Will result in the transportation over ways which will be unduly injured thereby.
- (5) Will result in a change of topography and cover which will be disadvantageous to the most appropriate final use of the land or to the use of lands adjacent to the site.
- (6) Will cause irreparable harm to or loss of important wildlife, wildlife habitat or rare plant species indigenous to the area.
- (7) Will result in stormwater damaging abutting properties.

B. Applicants are encouraged to submit a written statement regarding how each of the previous items will be addressed and/or mitigated.

§ 140-8 Regulations.

The PGA may adopt and periodically amend rules and regulations for the implementation of this article, by majority vote. Such rules and regulations may set forth performance standards for earth removal and fill operations, impose filing and consultant fees, define additional terms not inconsistent with the article, and establish administrative procedures. Failure by the PGA to adopt such rules and regulations or a legal declaration of their invalidity by a court of law shall not act to suspend or invalidate the effect of this article.

§ 140-9 Permit procedures.

A. Any person wishing to obtain a permit to remove from or place earth material on a property in the Town, or to use any public way within the Town for transporting such material, shall file a completed application for a

permit together with any required supporting data and maps with the PGA and the filing fee, as established in the regulations of the PGA.

B. Any permit issued is nontransferable and shall automatically expire upon completion of the earth removal or fill project for which it was issued or at such time as may be specified in said permit. In no case shall a permit be issued initially for a period longer than three years. A permit may be renewed for up to two years or lesser time as determined by the PGA after evidence is presented that all conditions of the expiring permit have been complied with and the work has been performed in good faith. There is no limit on the number of permit renewals an applicant can apply for. A public hearing may be required by the PGA, at its discretion, for renewal of permits.

§ 140-10 Public hearing.

A. Once a complete permit application is filed with the PGA, the PGA shall set a date for a public hearing and so notify the applicant. Notice of the hearing shall be published by the PGA, at the applicant's expense, in a newspaper of general circulation in each of two successive weeks, the first publication being not less than 14 days before the day of said hearing. Notice of the hearing shall be given to all owners of real estate abutting upon the land specified in the permit application or lying within 300 feet of the subject parcel, all as appearing on the most recent tax list. The PGA will arrange for the publication and transmission of the notice of the hearing to the abutters, and the costs will be billed to the applicant. Final approval for the permit shall not be made until all hearing fees have been paid in full.

B. The PGA's final action, rendered in writing, shall consist of either:

- (1) Approval of the site plan based upon determination that the proposed plan will constitute a suitable development and is in compliance with the standards set forth in this Bylaw; or
- (2) Disapproval of the site plan based upon a determination that the proposed plan does not meet the standards set forth in this Bylaw; or
- (3) Approval of the site plan subject to any condition, modification or restriction required by the Planning Board which will ensure that the project meets the standards set forth in this Bylaw.

§ 140-11 Bond or security.

The Board may require suitable bond or other security adequate to assure compliance with any of the provisions of this bylaw.

§ 140-12 Enforcement; violations and penalties.

A. The PGA or its authorized agent shall enforce this article, its regulations, and the requirements and conditions of permits issued thereunder and may pursue civil and criminal remedies for violations of the same.

B. The Building Inspector is authorized to conduct inspections on behalf of the PGA. To the extent permitted by law, or if authorized by the owner, operator, or other person in control of the site, the Building Inspector or other agent of the PGA may enter on the site to conduct inspections.

C. The Building Inspector or other authorized agent of the PGA may issue such orders as are deemed necessary to stop violations and ensure compliance with this article, its regulations, and permits, including an order to cease and desist operations. Such orders may be issued by certified mail, return receipt requested, or by delivery, to the property owner, permit holder, or person responsible for operations at the site.

D. The PGA may seek injunctive relief to restrain violations or to compel abatement or remediation of

violations.

E. Any person who violates any provision of this article or regulations, permits, and orders issued thereunder may be punished by a fine of not more than \$300 per offense. Each day that such violation occurs or continues shall constitute a separate offense.

F. As an alternative to a criminal fine, the Town may utilize the noncriminal disposition procedures of MGL c. 40, § 21D, in which case the Building Inspector shall be the enforcing person. The penalty for the first offense shall be \$100. The penalty for the second offense shall be \$200. The penalty for the third and subsequent offenses shall be \$300.

G. If the violator holds a permit issued under this article, the PGA may revoke the permit after a public hearing, at which point all operations shall cease until such time as the necessary measures are taken to assure compliance with this article and a new permit is issued.

§ 140-13 Severability.

The provisions of this article are severable, and the invalidity of any section, subdivision, paragraph, or other part of this article shall not affect the validity or effectiveness of the remainder of the article.

(Submitted by the Planning Board)

FINANCE COMMITTEE RECOMMENDATION: Deferred (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (4-1)

ARTICLE 12. To see if the Town will vote to accept as a public or town way, under the provisions of Massachusetts General Laws Chapter 82, as amendment, that certain roadway known as Butterfly Lane, as shown on plans on file in the Board of Selectmen and Town Clerk's Office entitled "Butterfly Lane As-built Street Plan of Land in Lunenburg, Mass, prepared for Mike Crowley, dated August 16, 2019 and being plan 14-L-876 by Whitman & Bingham Associates, LLC," and "Butterfly Lane Acceptance Plan of Land in Lunenburg, Mass, prepared for Mike Crowley, dated August 16, 2019 and being plan 14-L-876 by Whitman & Bingham Associates, LLC"; and to authorize the Board of Selectmen to accept for nominal consideration a deed of a fee interest therein, said roadway having been determined to be unique, to be used for municipal purposes consistent with those uses to which other public ways in the Town are customarily put; or take any other action relative thereto. (Submitted by the Board of Selectmen)

FINANCE COMMITTEE RECOMMENDATION: Deferred (6-0)
BOARD OF SELECTMEN RECOMMENDATION: Deferred (5-0)

ARTICLE 13. To see if the Town will vote to support the demolition of the old Primary School located at 30 School Street, which vote shall be a non-binding resolution meant to provide guidance to the Board of Selectmen; or take any other action relative thereto. (Submitted by the Board of Selectmen)

FINANCE COMMITTEE RECOMMENDATION: No Recommendation (5-0-1 Abstention)
BOARD OF SELECTMEN RECOMMENDATION: No Recommendation (5-0)

ARTICLE 14. To see if the Town will vote to file a Home Rule Petition with the General Court for a special law authorizing the Town to grant an additional license for the sale of wines and malt beverages not to be drunk on the premises to Lanni Orchards. The proposed Special Act would read as follows:

AN ACT AUTHORIZING THE TOWN OF LUNENBURG TO GRANT AN ADDITIONAL LICENSE FOR THE SALE OF WINES AND MALT BEVERAGES NOT TO BE DRUNK ON THE PREMISES TO LANNI ORCHARDS

SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the licensing authority of the town of Lunenburg may grant 1 additional license for the sale of wines and malt beverages not to be drunk on the premises pursuant to section 15 of said chapter 138 to Lanni Orchards, located at 294 Chase Road. The license shall be subject to all of said chapter 138 except said section 17.

(b) The licensing authority of the town of Lunenburg shall not approve the transfer of the license granted pursuant to this act to any other location but it may grant a license to a new applicant at the same location if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(c) If a license granted pursuant to this act is cancelled, revoked or no longer in use at the location of original issuance, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may then grant the license to a new applicant at the same location under the same conditions as specified in this act.

SECTION 2. This act shall take effect upon its passage.

(Submitted by the Board of Selectmen)

FINANCE COMMITTEE RECOMMENDATION: Deferred (6-0)

BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (5-0)

ARTICLE 15. To see if the Town will vote to file a Home Rule Petition with the General Court for a special law authorizing the Town to grant an additional license for the sale of wines and malt beverages not to be drunk on the premises, in addition to that authorized by the Home Rule Petition referenced in the preceding Article 14. The proposed Special Act would read as follows:

AN ACT AUTHORIZING THE TOWN OF LUNENBURG TO GRANT AN ADDITIONAL LICENSE FOR THE SALE OF WINES AND MALT BEVERAGES NOT TO BE DRUNK ON THE PREMISES

SECTION 1. (a) Notwithstanding section 17 of chapter 138 of the General Laws, the licensing authority of the town of Lunenburg may grant 1 additional license for the sale of wines and malt beverages not to be drunk on the premises pursuant to section 15 of said chapter 138. The license shall be subject to all of said chapter 138 except said section 17.

(b) The licensing authority of the town of Lunenburg may approve the transfer of the license granted pursuant to this act to another location if the applicant files with the licensing authority a letter from the department of revenue and a letter from the department of unemployment assistance indicating that the license is in good standing with those departments and that all applicable taxes, fees and contributions have been paid.

(c) If a license granted pursuant to this act is cancelled, revoked or no longer in use at the location of original issuance, it shall be returned physically, with all of the legal rights, privileges and restrictions pertaining thereto, to the licensing authority and the licensing authority may then grant the license to a new applicant at any location as may be determined by the licensing authority under the same conditions as specified in this act.

SECTION 2. This act shall take effect upon its passage.

(Submitted by Board of Selectmen)

FINANCE COMMITTEE RECOMMENDATION: Deferred (6-0)

BOARD OF SELECTMEN RECOMMENDATION: Recommend Approval (4-1)

And you are directed to serve this Warrant by posting attested copies thereof in four or more public places in the Town, fourteen (14) days at least before the day appointed for said meeting, one of which places shall be the Town Hall, one at Whalom Variety Store in the Whalom-Bakerville District, one at Powell's and one at Jaxx Country Variety, and by mailing a copy to each dwelling unit in the Town in which a registered voter resides at least fourteen (14) days prior to such meeting. Hereof, fail not and make due return of this Warrant, with your doings thereon, to the Town Clerk at the time and place aforesaid.

Given under our hands this 15th day of October in the year Two Thousand and Nineteen

LUNENBURG BOARD OF SELECTMEN

A true copy attest:

Kathryn M. Herrick, Town Clerk

Tom Alonzo, Chairman

Phyllis Luck, Vice Chairman

Damon McQuaid, Clerk

Kathryn Adams, Member

Michael Ray Jeffreys, Member

I have this day posted attested copies of the foregoing warrant in four or more public spaces in the town, including Town Hall, one at Jaxx Country Variety, one at Whalom Variety Store in the Whalom-Bakerville District and one at Powell's Stone and Gravel, all within at least fourteen (14) days before the meeting and have mailed a copy of the same to each dwelling unit in the Town in which a registered voter resides at least fourteen (14) days prior to such Special Town Meeting.

John E. Baker, Constable

Date